going restrictions, will make available for inspection, upon request of the applicant, his guardian, or legal representative, a record of the proceedings of any case reviewed by the Review Board.

* * * * *

§ 881.38 *Rehearings.* (a) After the Review Board has reviewed a case and its findings and decision has been approved, the case normally will not be reconsidered, except on the basis of new, pertinent, and material evidence which might reasonably be expected to cause findings and decision other than those rendered as the result of the original review.

(b) Any officer desiring a rehearing of his case will make a written application therefor on AF Form 437, "Application for Review of Findings of the Department of the Air Force Disability Review Board."

[AFR 36-29, Sept. 29, 1954] (R. S. 161, sec. 202, 61 Stat. 500, as amended; 5 U. S. C. 22, 171a. Interpret or apply secs. 301, 302, 58 Stat. 286, 287, as amended; 38 U. S. C. 693h, 693i)

[SEAL] E. E. TORO,
Colonel, U. S. Air Force,
Air Adjutant General.

[F. R. Doc. 55-3626; Filed, May 4, 1955; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[Public Land Order 1139]

ALASKA

RESERVING CERTAIN PUBLIC LANDS FOR USE OF DEPARTMENT OF THE ARMY; PARTLY REVOKING PUBLIC LAND ORDER NO. 386 OF JULY 31, 1947

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, including the rights of natives based on occupancy, the following described public land in Alaska is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining laws and the mineral-leasing laws, and reserved in connection with lands withdrawn by Public Land Order No. 765 of November 23, 1951, for the use of the Department of the Army for military purposes:

NORTHWAY

Beginning at a point from which corner No. 4, U. S. Survey No. 2781, latitude 63°00'5" N., longitude 141°47'00" W., bears S. 32°06' E. 600 feet, and S. 2°08' W. 1,372.40 feet; thence N. 32°06' W., 200 feet; N. 57°54' E., 510 feet; S. 32°06' E., 200 feet; S. 57°54' W., 510 feet; to the point of beginning.

The area described contains 2.34 acres.

This order shall take precedence over, but not otherwise affect, the withdrawal for the Alaska Highway made by Public Land Order No. 601 of August 10, 1949.

Public Land Order No. 386 of July 31, 1947, withdrawing lands for various public purposes including classification and survey, is hereby revoked so far as it affects the above-described lands.

ORME LEWIS,
Assistant Secretary of the Interior,

APRIL 28, 1955.

[F. R. Doc. 55-3632; Filed, May 4, 1955; 8:46 a. m.]

[Public Land Order 1140]

ALASKA

WITHDRAWING LANDS FOR USE OF ALASKA ROAD COMMISSION; PARTIALLY REVOKING EXECUTIVE ORDER OF JUNE 13, 1899, AS AMENDED BY EXECUTIVE ORDER NO. 4131 OF JANUARY 22, 1925

By virtue of the authority vested in the President and purusant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public land in Alaska is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for use of the Alaska Road Commission:

Beginning at a point from which corner No. 1, U. S. Survey No. 353, being the intersection of the center of C Street, Eagle Townsite, with the left bank of the Yukon River, bears S. 21° 27' E., 170 feet and N. 68° 03' E., 1,008 feet, thence S. 68° 03' W., 300 feet; N. 21° 57' W., 300 feet; N. 68° 03' E., 300 feet; S. 21° 57' E., 300 feet to point of beginning.

The tract described contains 2.06 acres.

The Executive Order of June 13, 1899, as amended by Executive Order No. 4131 of January 22, 1925, withdrawing certain lands in Alaska for military purposes is hereby revoked so far as it affects the above-described lands.

ORME LEWIS,
Assistant Secretary of the Interior.

APRIL 28, 1955.

[F. R. Doc. 55-3631; Filed, May 4, 1955; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 941]

[Docket No. AO-101-A19]

MILK IN CHICAGO, ILLINOIS, MARKETING AREA

NOTICE OF HEARING ON PROPOSED AMENDMENTS TO TENTATIVELY APPROVED MARKETING AGREEMENT AND TO ORDER, AS AMENDED, REGULATING HANDLING

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of a public hearing to be held in the Century Room, LaSalle Hotel, La Salle and Madison Streets, Chicago, Illinois, beginning at 10:00 a. m., c. d. s. t., on May 9, 1955, for the purpose of receiving evidence with respect to amending the tentative marketing agreement and the order, as amended, regulating the handling of milk in the Chicago, Illinois marketing area.

Evidence will be received at the hearing with respect to only the price for Class I milk. References to the price for Class II milk contained herein are to be considered only as relating to changes which conform order provisions to proposed changes in the Class I price.

Specific proposed amendments which have been submitted are as follows:

By the Pure Milk Association:

1. In § 941.51 add a paragraph (d) as follows:

(d) Determine the number of qualified producers delivering milk during the most recent month. The Class I and Class II price differentials shall be increased or decreased ¾-cent per hundredweight for each 100 producers or major part thereof, more or less than 23,000.

2. In § 941.52 add another proviso to paragraph (a) (1) to read: "*Provided,* That such Class I price differentials shall be increased or decreased, respectively, 1½ cents per hundredweight for each full percent that the current supply-demand ratio is greater or less than 72 percent. The adjustments resulting from the above computations shall not exceed 24 cents per hundredweight."

3. In § 941.52 change paragraph (a) (1) to make Class I price differentials $1.10 per hundredweight for August, September, October and November, and 90 cents per hundredweight for all other months.

By the Pure Milk Products Cooperative:

4. Amend § 941.52 to provide for a Class I differential of $1.00 per hundredweight to be added to the basic formula price during each delivery period of the year.

5. Amend §§ 941.51 and 941.52 to provide for the elimination or modification of the supply-demand adjustor provision of Order 41 as it effects the Class I and Class II price differentials.

By the Pure Milk Association:

6. In § 941.52 (a) (3) and (b) (3) add the following:

Class I or Class II milk moved in bulk to unregulated plant(s) shall be classified separately and during the months of September, October and November, the price thereof shall be 70 cents per hundredweight higher than the price otherwise computed.

Any handler selling Class I or Class II milk in bulk to unregulated plant(s) during the months of April, May and

June may sell an equal quantity of Class I or Class II milk in bulk to unregulated plant(s) during the months of September, October and November of the same year without the 70 cents per hundredweight above described being applied.

By the Barron Cooperative Creamery; Wisconsin Cooperative Dairies, Inc.; Farmers Cooperative Creamery; and Falls Dairy, Inc.:

7. Delete § 941.52 (a) (3) and (b) (3) to eliminate the $0.70 higher price.

By the Dairy Division, Agricultural Marketing Service:

8. Make such other changes as may be required to make the entire marketing agreement and order conform with any amendments thereto that may result from this hearing.

These proposed amendments have not received the approval of the Secretary of Agriculture. With respect to other proposals which have been submitted but are not included in this notice, hearing is deferred.

Copies of this notice of hearing and of the said order, as amended, may be procured from the Market Administrator, 73 West Monroe Street, Chicago 3, Illinois, or from the Hearing Clerk, Room 112, Administration Building, United States Department of Agriculture, Washington 25, D. C., or may be there inspected.

Dated: May 2, 1955.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator.

[F. R. Doc. 55-3663; Filed, May 4, 1955; 8:52 a. m.]

[7 CFR Part 987]

[Docket No. AO 252-A1]

MILK IN CENTRAL MISSISSIPPI MARKETING AREA

NOTICE OF HEARING ON PROPOSED AMENDMENTS TO TENTATIVE MARKETING AGREEMENT AND TO ORDER REGULATING HANDLING

Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part. 900), notice is hereby given of a public hearing to be held in Assembly Room, State Office Building, Jackson, Mississippi, beginning at 1:00 p. m., local time, May 9, 1955, for the purpose of receiving evidence with respect to the proposed amendments hereinafter set forth, or appropriate modification thereof to the tentative marketing heretofore approved by the Secretary of Agriculture and to the order regulating the handling of milk in the Central Mississippi marketing area (7 CFR Part 987 et seq.). The proposed amendments have not received the approval of the Secretary of Agriculture.

The following amendments to the order regulating the handling of milk in the Central Mississippi marketing area are proposed by the Mississippi Milk Producers Association:

1. Amend § 987.90 by inserting the following as paragraph (d):

(d) (1) On or before the 13th and 26th days of each month in lieu of the payment pursuant to paragraphs (a) and (b) and (c) of this section, respectively, each handler shall pay to a cooperative association which so requests, with respect to producers for whose milk such cooperative association is authorized to collect payment, an amount equal to the sum of the individual payments otherwise payable to such producers;

(2) A copy of the request from the cooperative association to each handler for payment to the cooperative association of the sums due to such producers for whose milk such cooperative association is authorized to collect payment and a certified list of the members of such cooperative association for whom payment is requested shall be filed simultaneously with the handler and the market administrator by the cooperative and shall be subject to verification at the discretion of the market administrator through audit of the records of the cooperative association requesting payment. Exception, if any, to the accuracy of such certified list of members by a producer claimed to be a member or be a handler shall be made by written notice to the market administrator and shall be subject to his determination.

2. Reletter the present paragraph (d) of § 987.90 as paragraph (e).

3. Amend § 987.44 to effect the following: "That skim milk or butterfat transferred from a handler operating a supply plant to a handler operating a distributing plant shall be classified as Class II milk or that the classification of such milk between Class I and Class II shall be prorated on the basis of the relationship in total amount of milk received from such supply plant, and the regular current producers of the handler operating the distributing plant."

The following amendment to the order is proposed by the Dairy Division, Agricultural Marketing Service:

4. Make such changes as may be necessary to conform the provisions of the marketing agreement and order with any amendments thereto which may result from this hearing.

Copies of this notice of hearing, and the order now in effect, may be procured from the market administrator, Rooms 204-6, Fondren Bank Branch Building, 603 Duling Street, Jackson, Mississippi, or from the Hearing Clerk, United States Department of Agriculture, Room 112, Administration Building, Washington 25, D. C., or may be there inspected.

Dated: May 3, 1955.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator.

[F. R. Doc. 55-3669; Filed, May 4, 1955; 8:54 a. m.]

CIVIL AERONAUTICS BOARD

[14 CFR Part 20]

PILOT AND INSTRUCTOR CERTIFICATES

NOTICE OF PROPOSED RULE MAKING

Pursuant to authority delegated by the Civil Aeronautics Board to the Bureau of Safety Regulation, notice is hereby given that the Bureau will propose to the Board a revision of Part 20 of the Civil Air Regulations.

Interested persons may participate in the making of the proposed rules by submitting such written data, views, or arguments as they may desire. Communications should be submitted in duplicate to the Civil Aeronautics Board, attention Bureau of Safety Regulation, Washington 25, D. C. In order to insure their consideration by the Board before taking further action on the proposed rules, communications must be received by August 10, 1955. Copies of such communications will be available after August 15, 1955, for examination by interested persons at the Docket Section of the Board, Room 5412, Department of Commerce Building, Washington, D. C.

Currently effective Part 20 establishes requirements for the issuance of student, private, and commercial pilot certificates, and for aircraft, instrument, and instructor ratings. Experience under this part has shown that some of the standards are too specific while others are not specific enough. Moreover, it appears desirable to propose a number of substantive changes to this part. In view of the many changes being considered, a complete revision is being proposed.

The part, as proposed, is divided into several subparts of which the first contains general provisions that apply to all types of pilot certificates. Then there are subparts for student, private, and commercial pilot certificates, with each of these being further divided into requirements for airplane, glider, and rotorcraft ratings. Therefore, as an example, a person desiring a private pilot certificate with an airplane rating need refer only to the general requirements plus those listed under private pilot for airplanes. In addition, there are subparts which provide for the issuance of flight instructor certificates and additional aircraft and instrument ratings to persons holding pilot certificates, and the special issuance of pilot certificates, such as to persons who are or were rated pilots in the military services or hold a foreign pilot license.

The following specific changes have been incorporated in this notice:

(a) *Student pilot certificates.* (1) Student pilot certificates may be issued to applicants who are under the present minimum ages, but such student pilot certificates shall be limited to solo flights within the local flying area and under the direct supervision of a flight instructor. We have received several requests for waivers of the minimum age requirements for student pilots, and such a waiver has been granted for a con-